

Council Meeting
September 11, 2019
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The Claremont City Council held a meeting on Wednesday, September 11, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Kristin Kenniston

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

AGENDA CHANGES

Mayor Lovett said the Non-Public Session would not be needed tonight.
Under Mayor’s Notes change the order of A & B.

REPORT OF THE SECRETARY

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to accept the minutes of the August 1, 2019, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to accept the minutes of the August 7, 2019, City Council meeting, as amended.

Ms. Kier said she was present for the meeting, but was not counted for the votes.

Voice vote: motion carried 8-0.

A motion was made by Mr. O’Hearne and seconded by Mr. Damren to accept the minutes of the August 14, 2019, City Council meeting, as amended.

Ms. Kier said she was absent, but was on the votes.

Mayor Lovett said on page 4, 4th paragraph regarding the situation with the School District IRS penalties, it’s written in the minutes that Mr. MacLean believed there was a failure with grants. She believes that it should be there was a failure to file with the IRS in a timely fashion. Mr. MacLean did not object to the change.

Voice vote: motion carried 7-0, with 1 abstain, Ms. Kier.

MAYOR’S NOTES

Recognition of First Responders

Mayor Lovett, regarding 9/11, thanked the Fire Department for the beautiful display they put on every year. She said the New York Fire Department has 13 new members, whose firefighter fathers were murdered in 9/11. That is the most legacy members since 9/11.

Council observed a moment of silence.

Mayor Lovett recognized first responders at the local level regarding the active shooting incident last month. The community can thank many first responders who were involved: Fire, Police State Police, Sheriff, resources from out of state, SWAT, and Golden Cross Ambulance. Police Chief Mark Chase said it was reassuring to the officers to have the support of the community. Mr. O’Hearne also recognized the Communications personnel.

Proclamation Regarding Suicide Prevention Week

Mayor Lovett presented a proclamation for Suicide Prevention Week to the City Manager. Mr. MacLean explained that he has volunteered on a suicide hotline and that suicide not only affects the individual, but also the entire family. National Suicide Hotline 1-800-273-8255.

Mayor’s Notes:

- Thanked the Library for the open house celebrating installation of the new air conditioner in the Library and the donors, Mascoma Bank and the Helen Cormier Estate.
- Former Massachusetts Governor Bill Weld came to Claremont today. She thanked all who participated in his visit.
- Executive Councilor Cryans, NH DOT Commissioner Victoria Sheehan, Representatives Walt Stapleton and John Cloutier were in Claremont for a presentation of the 10-year transportation plan.
- Lead Program September 18, 6-7:30 p.m., River Valley Community College. Educators and childcare centers asked to attend.

- Joint Council School Board meeting September 26, 6:30 p.m., Sugar River Valley Regional Technical Center.

CITY MANAGER'S REPORT

- City received two bids for demolition of 139 Main Street. United Construction was the lowest responsive bid.
- Board of Assessors (BOA) – not been able to recruit. Of 135 City-wide board positions, 103 are regular seats and there are 25 vacancies, and of the 32 alternate seats, there are 19 vacancies. He suggested the Council have a subcommittee address this issue. There have been no applications for the BOA. Without the BOA for the abatement appeal process, applicants are going to Superior Court.
- Steve Hamilton, Interim Assessor, said the City is wrapping up the revaluation process. He will come back on the 25th with the final valuation. Regarding the BOA, we want to have the full process in place when we send out the December tax bills. The BOA can expect to meet 7-9 times a year, for 2-3 hours each time.
- Mayor Lovett reminded everyone the Policy Committee worked to get the BOA established based on the concerns of the public.
- Mr. MacLean continued his report. Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC) was a recipient of EPA Brownfield assessment funds. They contracted with Credere environmental engineers to perform necessary tasks related to the fund. The City has requested funds for an assessment of the area around the old Sullivan Machine smokestack. Credere has contracted with Fuss & O'Neill to create two concepts for a river walk or waterfront park, at no cost to the City.
- The City continues discussions with North Light Energy Solar and will bring back more information at the September 25th Council meeting.
- Mr. Pope said regarding the Riverwalk, that a study was done in 1990s-2000s where conceptual plans were done. Nancy Merrill, Planning and Development Director, said some old plans were found and they will be given them. The City has control of every lot between the two bridges. Mr. MacLean talked about the wonderful job Ms. Merrill and her staff have done in terms of future goals and opportunities.

APPOINTMENT TO BOARDS AND COMMITTEES

None

CITIZEN'S FORUM

Chuck Allen, Arrowhead Recreation Club member and Ward 3 resident, gave an update on some of improvements at Arrowhead Recreation Area, including tearing down the old wooden deck and installing a patio (\$16,000 value added to Arrowhead); flower bed; lift covering; and installed a cold drink machine with an energy miser. Roof, windows, doors, and heating system are still issues. Mr. Allen said the Club is currently tight on funds. They sent out the groomer for maintenance and expect the cost to be \$8,000 - \$10,000. They are looking for volunteers for winter operations.

Jim Contois, Ward 2, talked about Acuity Management taking back its application from the Planning Board regarding a construction and demolition (C&D) facility. The permit continues on. He is part of a civic group called A Better Claremont, abetterclaremont@gmail.com. The group is for a clean, healthy Claremont. The C&D facility they want to build is only 1,000 yards from Maple Avenue School. A Better Claremont won't stop being against this C&D facility. The group would like people to come forward with their ideas.

OLD BUSINESS

Ordinance 568 Amending the Non-Union Employee Pay Schedule – Third Reading – Public Hearing

The purpose of this proposed change is to amend Attachment C to the Non-Union Employee Classification Plan by amending and readopting the salary schedule for non-union City employees.

Enactment of this Ordinance will amend Attachment C of the Non-Union Employee Classification Plan. This change was requested by the City Administration and recommended by the Personnel Advisory Board.

A motion was made by Ms. Kier and seconded by Mr. Damren to adopt Ordinance 568 Amending the Non-Union Employee Pay Schedule on Third Reading.

Ms. Kier read the ordinance into the record.

Mr. MacLean said there have been a number of years where Merit Plan employees had not received a pay increase. Many Merit Plan employees are not directors. The City needs to be able to recruit and retain qualified employees. He talked about fairness and that many union employees have received salary increases, but not Merit Plan employees.

Mayor Lovett said this is step 1 of the recommendations from the Personnel Advisory Committee (PAB). Should this pass, the PAB recommends there be a study done on Merit Plan salaries.

Mayor Lovett opened the public hearing.

Rebecca Vinduska, Ward 1 resident and Merit Plan employee, said that she is not a director, nor is she a manager. She thanked the City Manager and the PAB for recognizing the importance of this issue. She encouraged the Council to vote positively for this ordinance.

Jim Contois, Ward 2, commended the City employees that are Merit employees. He works in the Library a lot and he commended the staff. He hopes the City will consider and protect against the salary disparity that often occurs between men and women; and he hopes the City encourages persons of color to apply for City jobs.

Mayor Lovett closed the public hearing.

Voice vote: motion carried 8-0.

NEW BUSINESS

HB480 Sports Betting Presentation

Mayor Lovett introduced the Executive Director of the NH Lottery Commission, Mr. McIntyre. She said this discussion is to help the community to determine if it wants Sports Betting or not. Mr. McIntyre said the House approved HB480 legalizing sports betting. The law allows up to 10 locations in the state for physical full sports betting. The Lottery has put out a bid to do this function. Sports betting is very complicated. If the City is interested, it should put the question on the ballot.

Mr. Koloski said even if the community votes no, people can still use the mobile app. It wouldn't be no for community, just no for the location.

It was agreed the public hearing should be held October 9th.

Mr. McIntyre said the estimated net profitability is \$10 million for year one and it will go out as adequacy grants to cities and towns. Money will go toward people with gambling addictions. There are no bordering states with sports betting. Other states who have done this: Nevada was grandfathered; Rhode Island and Delaware were the first states to go online.

A motion was made by Mr. Stone and seconded by Mr. Damren to place Sports Betting on the November ballot on November 5, 2019, in the correct format as stated by HB480.

Mr. Koloski said he will vote no, because he would rather have the discussion with the public before making a decision. Ms. Kier agreed with him.

To get on the ballot, the City Clerk would have to have this information by October 4th which is before the October 9th meeting. The September 25th meeting would be too soon to hold the public hearing.

There was a discussion about whether or not Mr. Koloski should recuse himself because he does business with the NH Lottery. Councilors felt there was no need for him to recuse himself.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - no
Pope - yes
Lovett - yes
Motion carried 7-1.

Annual Approval of Investment Policy

Lisa Richmond, Treasurer, said there is one slight change in the law; page 9, #3 was added for school districts.

A motion was made by Mr. Damren and seconded by Ms. Kier that the Claremont City Council, pursuant to RSA 47:6 and RSA 48:16, hereby re-adopts the City of Claremont Investment Policy, as amended, and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Investment Policy in accordance with state law and regulation.

Voice vote: motion carried 8-0.

Mayor Lovett asked for a consensus from the Council to send Municode Appendix L to the Finance Committee for review and update. There was consensus.

Arrowhead Tubing Area Safety Zone Expansion

Mark Brislin, Parks and Recreation Director, said that Arrowhead Recreation Club (ARC) wants to expand the tubing area safety zone. This past winter, some people went into the trees. The area is on the South Street side. It is about 75 feet wide x 65 feet deep. There will be a 25 foot buffer between Arrowhead and abutters. They will take down 71 living trees and 20 dead trees. This was discussed at the last Parks and Recreation Commission meeting. ARC, Conservation Commission and abutters were invited to the meeting.

Mr. Allen said this will make the area safer for tubers. The ARC went to abutters with the information and received no objections. Lee Stevens, forester, will do the work. The trees have little or no value. Some of the trees are saplings. There will be no cutting around the retention pond.

A motion was made by Mr. Damren and seconded by Ms. Kier to approve this request for the Arrowhead Tubing Area Safety Zone Expansion.

Voice vote: motion carried 8-0.

Ordinance 569 Gender Identity Changes – First Reading

The purpose of the proposed changes is to update the Claremont City Code to reflect changes in state law that prohibit discrimination based on a person's gender identity and to conform Sections 2-102 and 2-385 of the Claremont City Code to list the same protected classifications.

The changes relative to adding gender identity as a protected classification are recommended to the City Council by the Policy Committee.

A motion was made by Ms. Kier and seconded by Mr. Damren to adopt Ordinance 569 Gender Identity Changes.

Ms. Kier read the ordinance into the record.

Mr. O’Hearne said this was in violation of Council Rule 41. - Substitute Ordinances, because there was no red-lined version of the ordinance included in the Council packet and this needs to be moved to the next meeting.

Mr. Damren said he was in favor of withdrawing his motion. Ms. Kier said she would not withdraw her second.

Voice vote: motion failed 1-7 with all voting no except Ms. Kier.

Ordinance 570 Police Commission - First Reading

The purpose of this proposed change is to revise the ordinance governing the Police Commission to be consistent with applicable law and City practice. The current ordinance consists of one section (Section 2-282) located in Chapter 2, Article III, Division 9, titled Department of the Police. The proposal is to move the current Section 2-282 (Powers of the Police Commission) into Chapter 2, Article II (Boards, Committees and Commissions) to be located within a new Division 9 titled Police Commission. The new sections would be structured in a manner similar to the existing divisions governing other commissions and boards, including establishment, composition, powers and duties, and rules and procedures. The existing Chapter 2, Article III Division 9 – Department of the Police would remain where it is, Section 2-281 would be amended to add a cross-reference to the new Police Commission provisions, and Section 2-282 would be retained as “Reserved” for future provisions regarding the Police Department.

The establishment section would explain the unusual origin of the Police Commission. It was first established in 1947 by a special act of the NH Legislature, before the City had adopted the city form of government or the city charter. The Legislature has amended that original legislation three times over the years. In accordance with Section 69 of the City’s Charter, today the Police Commission continues to be governed by these special acts of the Legislature rather than the provisions of RSA 105-C. By capturing this history in the ordinance, future questions regarding the Police Commission may be more easily resolved.

The remaining provisions detail the composition of the Commission, appointment and removal of commissioners, powers and duties of the commission, and the relationship among the Commission, City Manager, and City Council regarding the oversight and funding of the Police Department.

Enactment of this Ordinance will repeal Chapter 2, Administration, Article III, Section 2-282, amend Section 2-281, and revise Chapter 2, Administration, Article II by inserting a new Division 9 – Police Commission, and adding new Sections 2-134 through 2-137. This change was requested by the City Council upon the recommendation of the Policy Committee.

Council agreed since this ordinance did not have a red-lined version included in the Council packet, it will be moved to the next Council meeting.

COMMITTEE REPORTS

Mayor Lovett said the Claremont train station construction was delayed, but is ongoing now and should be finished by October.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said the Policy Committee is working on the holiday light policy and will finalize its recommendation to the Council for the September 25th Council meeting.

Mr. Stone asked about the status of the Veterans Credit and Elderly Exemptions.

Mr. Koloski said Assessing was supposed to be getting feedback from the Senior Center, etc.

Mayor Lovett will check with Assessing.

Mr. Koloski asked about the Police Commission LSRs. Mayor Lovett said that has been moved to the next meeting.

Mr. Koloski said the Boston Post Cane hasn't been awarded in quite some time.

Mr. Pope gave some background information on the Cane and said there is a process for people to send letters of interest; the letters would be reviewed; and then the cane would be awarded to the oldest resident of Claremont.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(d) – REAL ESTATE

A motion was made by Mr. O'Hearne and seconded by Ms. Kier to enter the Non-Public Session pursuant to RSA 91-A:3,II(d) – Real Estate and to invite Mr. Brislin; Jeffrey Coburn, Parks and Recreation Commission Chair; Mr. Allen; Mr. MacLean; and Ms. Russell into the session.

Roll call vote:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 8-0.

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to exit the Non-Public Session.

Roll call vote:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 8-0.

Public session reconvened at 8:42 p.m.

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to seal the minutes, because it is determined that divulgence of this information likely would render a proposed action ineffective; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll Call Vote to seal minutes (2/3 vote required)

Roll call vote:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 8-0.

A motion was made by Ms. Kier and seconded by Mr. Pope to authorize the appraisal of Map Lot 144-11.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-0.

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(b) – HIRING

Withdrawn

ADJOURNMENT

At 8:44 p.m., a motion was made by Mr. O’Hearne and seconded by Ms. Kier to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council